

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
MIARA O'NEIL,

Plaintiff,

-against-

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KRISTA
CASCALEDA SHIELD No.: 13447, NEW YORK
CITY POLICE OFFICERS JOHN AND JANE DOE
1-10 (intended as police officers whose names and
identifying information are unknown),

Defendants.
-----X

Index No.:

Date Original
Summons & Complaint
were filed with the Clerk:

Plaintiff designates **KINGS
COUNTY** as the place of trial

The basis of venue is location
where the cause of action arose

SUMMONS

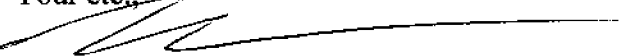
Plaintiff resides at:

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of you answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
January 23, 2020

Your etc.,


LAW OFFICES OF MITCHELL C. ELMAN, P.C.
Attorneys for Plaintiff
377 Oak Street, Suite 415
Garden City, NY 11530
(516)586-6666

Defendant's addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, NY 10038

POLICE OFFICER KRISTA CASCALENDA

c/o The New York City Police Department

One Police Plaza

New York, NY 10038

POLICE OFFICERS "JOHN/JANE DOE" 1-10

**(INTENDED AS POLICE OFFICERS WHOSE NAMES
AND IDENTIFYING INFORMATION ARE UNKNOWN)**

c/o The New York City Police Department

One Police Plaza

New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
MIARA O'NEIL,

Plaintiff,

Index No.:

-against-

**VERIFIED
COMPLAINT**

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KRISTA
CASCALENDIA SHIELD No.: 13447, NEW YORK
CITY POLICE OFFICERS JOHN AND JANE DOE #1-10
(intended as police officers whose names and identifying
information are unknown)

Defendants.
-----X

Plaintiff, complaining of Defendants, by her attorneys, Law Offices of Mitchell C.
Elman, P.C. respectfully shows to this Court, and alleges upon information and belief, the
following:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MIARA O'NEILL**

1. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK
was and still is a municipal corporation duly organized and existing under and by
virtue of the laws of the State of New York.
2. That prior to and at all times hereinafter mentioned, Defendant THE CITY OF
NEW YORK created and established the Defendant THE NEW YORK CITY

POLICE DEPARTMENT under and by virtue of the laws, rules and regulations of the Defendant THE CITY OF NEW YORK.

3. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK owned Defendant THE NEW YORK CITY POLICE DEPARTMENT.
4. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK operated Defendant THE NEW YORK CITY POLICE DEPARTMENT.
5. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK managed Defendant THE NEW YORK CITY POLICE DEPARTMENT.
6. That at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK controlled Defendant THE NEW YORK CITY POLICE DEPARTMENT.
7. That at all times hereinafter mentioned Defendant THE CITY OF NEW YORK maintained Defendant THE NEW YORK CITY POLICE DEPARTMENT.
8. That at all times hereinafter mentioned, Defendant POLICE OFFICER KRISTA CASCALEND A was a police officer employed by Defendant THE CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER KRISTA CASCALENDA was employed by Defendant THE NEW YORK CITY POLICE DEPARTMENT.

10. That at all times hereinafter mentioned, Defendant Police Officers "JOHN and JANE DOE" #1-10 were employed by Defendant THE CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendant Police Officers "JOHN and JANE DOE" #1-10 were employed by Defendant THE NEW YORK CITY POLICE DEPARTMENT.

12. That at all times hereinafter mentioned, Defendant POLICE OFFICER KRISTA CASCALENDA was acting within the scope of and in the course of her employment and under the authority and color of State Law.

13. That at all times hereinafter mentioned, Defendant Police Officers "JOHN and JANE DOE" #1-10 were acting within the scope of and in the course of their employment and under the authority and color of State of Law.

14. That at all times hereinafter mentioned, Defendant THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees were obligated to protect the rights of all persons and were required to follow and obey all laws

with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

15. That at all times hereinafter mentioned, POLICE OFFICER KRISTA

CASCALENDA was required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

16. That at all times hereinafter mentioned, Police Officers "JOHN and JANE DOE"

#1-10 were required to follow and obey all laws with respect to the detention, arrest, confinement, prosecution and/or assistance in the prosecution of all persons.

17. That heretofore and within ninety (90) days after the within claim(s) arise, Plaintiff

MIARA O'NEILL caused a Notice of Claim, in writing, sworn to by the then Claimant and/or her natural guardian, containing the name and post office address of the then claimant and her attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon Defendants, respectively, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

18. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served upon the respective Defendants.

19. That this action falls within one of more of the exceptions as enumerated in §1602 of the CPLR of the State of New York.

20. That the Defendant THE CITY OF NEW YORK has neglected and refused to adjust, settle and/or pay the aforesaid claim(s).

21. That the claims herein have been properly noticed and this action has been started within the appropriate and/or applicable statutory limitations subsequent to any accrual of the causes of action complained herein.

22. That on or about December 29, 2017, Plaintiff MIARA O'NEIL was lawfully present at the premises known as 1420 Brooklyn Avenue, Apt 4G, in the County of Kings, City and State of New York.

23. That on or about December 29, 2017 at approximately 6:00 A.M. o'clock of said day, while Plaintiff MIARA O'NEIL was lawfully present at the aforesaid premises, Defendant POLICE OFFICER KRISTA CASCALEND and other members of the New York City Police Department appeared at the premises known as 1420 Brooklyn Avenue, Apt 4G, in the County of Kings, City and State of New York.

24. That on or about December 29, 2017 at approximately 6:00 A.M. o'clock of said day, Plaintiff MIARA O'NEIL was lawfully present at the aforesaid premises, Defendants JOHN AND JANE DOE #1-10 appeared at the premises known as 1420 Brooklyn Avenue, Apt 4G, in the County of Kings, City and State of New York.

25. That on or about December 29, 2017, at the aforesaid location, respective Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER KRISTA CASCALEND A and POLICE OFFICERS JOHN AND JANE DOE #1-10 wrongfully, jointly and severally, arrested and confined Plaintiff MIARA O'NEIL and did so without probable cause or reasonable cause, without the consent of Plaintiff and Plaintiff was aware of her false arrest which was not otherwise privileged, causing her to suffer personal injuries, conscious pain and suffering, deprivation of freedom, loss of enjoyment of life, shock and fright and emotional upset that would naturally arise from such an incident.

26. That on or about December 29, 2017, at the above mentioned location and at other locations known to Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER KRISTA CASCALEND A and POLICE OFFICERS JOHN AND JANE DOE #1-10 came into contact with Plaintiff in a hostile and offensive manner without her consent and with the intention of causing harmful offensive bodily contact caused her to

suffer personal injuries, conscious pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.

27. That the respective Defendants and their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of searching the above mentioned premises.

28. That Plaintiff MIARA O'NEIL was taken by the Defendants, without probable cause or reasonable cause.

29. That on December 29, 2017, Plaintiff MIARA O'NEIL was falsely imprisoned at both the scene of the aforesaid location and continuing thereafter at the 70th Precinct of Defendant THE NEW YORK CITY POLICE DEPARTMENT, the Criminal Courthouse and the prison/jail facilities under the control of Defendant THE CITY OF NEW YORK.

30. That subsequent to the arrest of Plaintiff MIARA O'NEIL, Plaintiff MIARA O'NEIL was charged with CRIMINAL POSSESSION OF A FORGED INSTRUMENT IN THE FIRST DEGREE, CRIMINAL POSSESSION OF A FORGED INSTRUMENT IN THE SECOND DEGREE, CRIMINAL POSSESSION OF A FORGED INSTRUMENT IN THE THIRD DEGREE, CRIMINAL POSSESSION OF MARIJUANA IN THE SECOND DEGREE, CRIMINAL POSSESSION OF

MARIJUANA IN THE THIRD DEGREE, CRIMINAL POSSESSION OF CONTROLLED SUBSTANCE IN THE SEVENTH DEGREE, CRIMINAL POSSESSION OF MARIJUANA IN THE FOURTH DEGREE, ENDANGERING THE WELFARE OF A CHILD, CRIMINAL POSSESSION OF A WEAPON IN THE FOURTH DEGREE, CRIMINAL POSSESSION OF MARIJUANA IN THE FIFTH DEGREE, POSSESSION OF A PISTOL AMMUNITION, UNLAWFUL POSSESSION OF MARIJUANA.

31. That from December 29, 2017 and continuing for a few days without cause, Plaintiff MIARA O'NEIL remained falsely imprisoned as a result of said illegal, unlawful and improper conduct committed by the respective Defendants individually and in conspiracy with each other thereby depriving Plaintiff of her liberty and freedom.
32. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MIARA O'NEIL**

33. The Plaintiff MIARA O'NEIL repeats, reiterates and realleges each and every allegation as contained in Paragraphs "1" through "31" of the within action with the same force and effect as if more fully set forth at length herein.
34. That the respective Defendants, their agents, servants and/or employees engaged in improper, unlawful and illegal conduct in an effort to arrest and prosecute Plaintiff MIARA O'NEIL.
35. That at the above mentioned times and location and other locations and at times known to Defendants, including but not limited to the 70th Precinct and Central Booking, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER KRISTA CASCALEND, POLICE OFFICERS JOHN AND JANE DOE #1-10, their agents, servants, and/or employees wrongfully detained and imprisoned Plaintiff DEMI BHOJEDAT without her consent and against her will, and without reasonable or probable cause, kept her in their custody at which time she was aware of said wrongful detention and confinement which was not otherwise privileged and caused her to suffer injuries, pain and suffering, loss of enjoyment of life, loss of freedom, shock and fright and emotional upset that would naturally arise from such an incident.
36. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which

would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MIARA O'NEIL**

37. That Plaintiff MIARA O'NEIL repeats, reiterates and realleges each and every allegation as contained in Paragraphs "1" through "35" of the within action with the same force and effect as if more fully set forth at length herein.
38. That at the above mentioned times and locations, Defendants THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER KRISTA CASCALEND and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10, their agents, servants and/or employees were negligent, careless and reckless in their repeated failures to correct ascertain the identity of Plaintiff MIARA O'NEIL prior to her arrest and imprisonments; in the negligent infliction of emotional distress; negligent hiring, training, supervision, monitoring and retention of agents or/or employees; in failing to have and/or properly use any early warning screening system, psychological profiles and/or detection of untoward behavior and/or personality changes presented by police officers, and more particularly, the aforesaid Defendant police officers herein; and in failing to supervise, safeguard and/or monitor said Defendant police officers herein.

39. That the respective Defendants, among other deficiencies, failed to institute and/or follow any bona fide procedure and/or protocol within which to properly, lawfully and/or legally arrest, charge, incarcerate and/or prosecute Plaintiff MIARA O'NEIL.
40. That aforesaid occurrences included false arrest and/or wrongful imprisonment and said negligent hiring, training, supervision, monitoring and retention of its agents and/or employees including any failure to properly screen said Defendant police officers herein were caused wholly and solely by reason of the negligence of deliberate indifference of Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, respectively, their agents, servants and/or employees without any negligence on the part of Plaintiff contributing thereto.
41. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MIARA O'NEIL**

42. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "40" of this Complaint with the same force and effect as if set forth at length herein.

43. That respective Defendants, their agents, servants and/or employees engaged in improper, unlawful and illegal conduct in an effort to initiate, secure and continue a criminal proceeding against Plaintiff MIARA O'NEIL.

44. That Plaintiff MIARA O'NEIL was seized, battered, falsely arrested, stigmatized, defamed and wrongfully accused of various felony crimes more specifically stated in paragraph "30" of the herein complaint and under Docket Number CR-069036-17KN.

45. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.

46. That the respective Defendants, their agents, servants and/or employees engaged in improper, unlawful and illegal conduct in an effort to continue such prosecution.

47. That on or about November 11, 2018, all criminal charges against Plaintiff MIARA O'NEIL were dismissed.

48. That as a result of said occurrence, Plaintiff herein sustained severe injuries, suffered degradation, humiliation, loss of schooling, loss of reputation, esteem and various other emotional and mental injuries.

49. That by reason of the foregoing, Plaintiff MIARA O'NEIL has been damaged by the respective Defendants in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MIARA O'NEIL**

50. Plaintiff repeats, reiterates, realleges each and every allegation as contained in paragraphs "1" through "48" of this Complaint with the same force and effect as if more fully set forth at length herein.

51. That in instigating, ordering, validating, procuring and assisting in the arrest of Plaintiff MIARA O'NEIL, the respective Defendants, their agents, servants and/or employees while acting within the scope of their employment under "color of law" and on behalf of their employer Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, respectively, maliciously prosecuted Plaintiff MIARA O'NEIL without reasonable or probable cause and with full knowledge that the charges herein mentioned were false.

52. That at all times herein mentioned, respective Defendants individually and in conspiracy with each other, under "color of law" deprived Plaintiff of her right to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §1983 and 42 U.S.C §1985.

53. That all time herein mentioned, the respective Defendants violated Plaintiff's local, state, and federal civil rights including but not limited to 42 U.S.C. §1983, 42 U.S.C. §1985; and violated the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution; the New York State Constitution and Civil Rights Law of the State of New York; in the false arrest, unlawful imprisonment and intentional infliction of emotional distress; acted in a discriminatory manner; acted in a discriminatory manner on the basis of Plaintiff's race/ethnicity; Plaintiff was deprived of her civil rights by respective Defendants, their agents, servants and/or employees acting under color of State Law and Defendant's supervisors/superiors condoned or ratified improper conduct or a pattern of improper conduct or of deliberate indifference to Plaintiff's rights.

54. That as a result of the foregoing, Plaintiff was caused to and did suffer serious injuries and other consequential damages.

55. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff, MIARA O'NEIL demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, MIARA O'NEIL demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, MIARA O'NEIL demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, MIARA O'NEIL demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, MIARA O'NEIL demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would

otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together with costs, disbursements and punitive damages in an amount to be determined at the time of trial in the within action including any statutory attorneys fees and disbursements pursuant to 42 U.S.C §1988 and for such other and further relief as to this Court may deem just and proper.

Dated: Garden City, New York
January 22, 2020

Yours, etc.
LAW OFFICES OF MITCHELL C.
ELMAN, P.C.
377 Oak Street Suite 415
Garden City, NY 11530
(516)586-6666

VERIFICATION

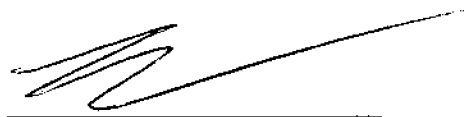
STATE OF NEW YORK)
)ss.:
COUNTY OF NASSAU)

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within COMPLAINT and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: Garden City, New York
 January 22, 2020



Mitchell C. Elman

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
MIARA O'NEIL,

Plaintiff,

Index No.:

**VERIFIED
COMPLAINT**

-against-

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KRISTA CASCALENDA
SHIELD No.: 13447, NEW YORK
CITY POLICE OFFICERS JOHN AND JANE DOE #1-10
(intended as police officers whose names and identifying
information are unknown)

Defendants.

-----X

LAW OFFICES OF MITCHELL C. ELMAN P.C.

377 Oak Street, Suite 415
Garden City, NY 11530
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Facsimile (516) 345-2517